

25VECV04080 25VECV04080

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-15

Motion: DEFENDANT AHANG MIRSHOJAE'S DEMURRER TO PLAINTIFFS' COMPLAINT WITH MOTION TO STRIKE

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Case Number: 25VECV04080 Hearing Date: July 15, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

GHAZAL SIMORGH; AVINA MIRSHOJAE, a minor by and
through her Guardian ad Litem Ghazal Simorgh; and the ESTATE OF HAMID
MIRSHOJAE,

Plaintiffs,

vs.

AHANG
MIRSHOJAE; EVAN HARDMAN; ASHLEY ROSE SWEETING; SARALLAH JAWED; SHAWN
RANDOLPH, and DOES 1 to 50,

Defendants.

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CASE

NO: 25VECV04080

[TENTATIVE]

ORDER RE: DEFENDANT AHANG MIRSHOJAE'S

DEMURRER TO PLAINTIFFS' COMPLAINT WITH MOTION TO STRIKE

Dept.

I

DATE:

JULY 15, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: JULY 21, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On July 21, 2025, Plaintiffs Ghazal Simorgh ("Simorgh"), Avina Mirshojae, a minor by and through her guardian ad litem Ghazal Simorgh ("Avina"), and the Estate of Hamid Mirshojae ("Estate")(collectively "Plaintiffs") filed a complaint against Defendants Ahang Mirshojae ("Ahang"), Evan Hardman ("Hardman"), Ashley Rose Sweeting ("Sweeting"), Sarallah Jawed ("Jawed"), Shawn Randolph ("Randolph"), and Does 1 to 50 alleging four causes of action: (1) intentional infliction of emotional distress; (2) wrongful death; (3) survival; and (4) violation of the Uniform Voidable Transactions Act ("UVTA").

On

June 22, 2026, Ahang filed the instant demurrer to and motion to strike portions of Plaintiffs' complaint.

On June

29, 2026, Plaintiffs filed their oppositions.

On July

8, 2026, Ahang filed his replies.

II.

LEGAL

STANDARD

Demurrer

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); McKenney, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (Blank, supra, 39 Cal.3d at 318.)

The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (Ibid.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447.)

CCP §

430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).)

Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When a

demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived

of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227 [“Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.”].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems

proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank, supra, 39 Cal.3d at 318.)

Before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Meet

and Confer Requirement

Defense counsel declares that, on June 10, 2026, he met and conferred with Plaintiff's counsel telephonically. (Wu Decl. ¶ 4.) The parties were unable to reach an agreement. (Ibid.) Accordingly, Ahang satisfies the meet and confer requirement of CCP §§ 430.41(a) and 435.5(a).

Demurrer

Ahang

demurs to Plaintiffs' third and fourth causes of action, for survival and violation of the UVTA, respectively, on the grounds that Plaintiffs fail to state facts sufficient to constitute each cause of action. (See Demurrer at p. 3.)

Third Cause of Action – Survival

Plaintiffs plead that they are successors in interest to the estate of Hamid Mirshoe. (See Complaint at ¶ 37.) "As a direct and proximate result of the acts and other wrongful acts described above of defendants and each of them, they are liable for, and plaintiffs are entitled to recover of them, decedent's survival economic damages . . ." (Id. at ¶ 39.)

Ahang

argues that Plaintiffs' third cause of action for survival cannot survive demurrer because the claim is "untethered to any underlying cognizable cause of action." (Demurrer at 6:13-22.) Notably, a survivor claim must plead the substantive elements of the underlying claim as it existed before the decedent's death. (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256.)

In

opposition, Plaintiffs argue that "[t]he decedent, Hamid Mirshoe, was shot multiple times before he died. That conduct gave hm, in life, causes of action for assault and battery and for the civil conspiracy to commit them; claims that accrued the instant he was attacked and survived his death. The complaint pleads these facts in detail . . ." (Opposition at 10:13-22.) The Court agrees with Plaintiffs and finds that Plaintiffs adequately plead underlying causes of action for assault and battery, giving rise to the survival claim.

Ahang

also demurs to Plaintiffs' third cause of action on the grounds that Plaintiff failed to satisfy the declaration requirement of CCP § 377.32. Section 377.32 requires a person seeking to commence an action or proceeding as the decedent's successor in interest to execute and file an affidavit stating the following: (1) decedent's name; (2) the date and place of decedent's death; (3) that no proceeding is now pending in California for administration of the decedent's estate; (4) if the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest; (5) a statement that the declarant is authorized to act on behalf of the decedent as their successor in interest; (6) that no other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding;" (7) a declaration under penalty of perjury; and (8) a certified copy of the decedent's death certificate. (See CCP § 377.32.)

Ahang

argues that Plaintiffs "confusingly state[]: 'No proceeding is not pending in California for administration of Decedent's estate' The phrasing makes it impossible to tell whether [Plaintiffs] meant to declare that there is no proceeding currently pending for the administration of the decedent's estate or that there is indeed a proceeding pending for the administration of the decedent's estate." (Demurrer at 7:10-17.)

The

Court agrees. Accordingly, Ahang's demurrer to Plaintiffs' third cause of action for survival is sustained with leave to amend so that Plaintiffs may submit a code-compliant declaration of survival.

Fourth Cause of Action – Violation of the UVTA

To plead a cause of action of violation of the UVTA, a plaintiff must allege ultimate facts showing that (1) the plaintiff is a "creditor" holding a claim against the "debtor;" (2) the defendant is the "debtor;" (3) the debtor made a transfer of an asset or incurred an obligation. (See Civ. Code § 3439.01.) A "transfer" is broadly defined to include "every mode, direct or indirect, absolute or conditional, voluntary or involuntary, of disposing of or parting with an asset or an interest in an asset, and includes payment of money, release, lease, license, and creation of

a lien or other encumbrance.” (Civ. Code § 3439.01.)

Here, Plaintiffs

plead that Ahang “contrive[d] of a scheme to have her ex-husband Hamid Mirshojae murdered for the purpose of financial gain . . .” (Complaint at ¶ 16.) Plaintiffs also plead that Ahang “engag[ed] in fraudulent transfers of AHANG’s assets subsequent to the effectuation of the murder scheme detailed above, with full knowledge that as a result of their wrongful conduct, said defendants would incur substantial debt beyond their ability to pay.” (Id. at ¶ 42.) Under Civ. Code § 3439.01(c), a “creditor” is simply a “person that has a claim.” (Civ. Code § 3439.01(c).) A “claim” is a “right to payment, whether or not the right is reduced to judgment, liquidated, unliquidated, fixed, contingent, matured, unmatured, disputed, undisputed, legal, equitable, secured, or unsecured.” (Civ. Code § 3439.01.) This includes claims such as wrongful death and intentional infliction of emotional distress. (See Complaint.) Accordingly, Plaintiffs adequately plead a cause of action for violation of the UVTA.

Ahang

argues that Plaintiffs have failed to establish injury, since “[a] creditor has not been injured unless the transfer puts beyond reach property the creditor could subject to payment of his or her debt.” (Fidelity National Ins. Co. v. Schroeder (2009) 179 Cal.App.4th 834, 845.) “Plaintiffs do not allege whether or how the transfer rendered [Ahang] insolvent, impaired collection, or otherwise prevented them from satisfying any alleged claim.” (Demurrer at 9:1-6.) However, Plaintiffs plead that Ahang made the transfer “with an actual intent to hinder, delay and/or defraud.” (See Complaint.) Ahang fails to provide any authority that specific facts must be plead.

Based on

the foregoing, Ahang’s demurrer to Plaintiff’s fourth cause of action for violation of the UVTA is overruled.

Motion to Strike

Next, Ahang moves to strike language that she acted intentionally, willfully, maliciously, and with a conscious disregard of Plaintiffs’ rights, in addition to claims for punitive damages. (See Motion at p. 1.) However, Plaintiffs plead specific facts that Ahang and decedent divorced in 2010. (Complaint at ¶ 13.) “[O]ver the ensuing years subsequent to

[Ahang]'s divorce from Hamid Mirshojae, defendant AHANG engaged in a pattern of harassment, intimidation, and aggression toward Harmid Mirshojae, driven largely by avarice and vengeance." (Id. at ¶ 14.) "Plaintiffs are informed and believe and thereon allege that on numerous occasions over the years following their divorce, AHANG consistently demanded money from Hamid Mirshojae, due to a combination of her own reckless spending, inability to manage her finances, and outright greed." (Id. at ¶ 15.) "Plaintiffs are informed and believe and thereon allege that in the months leading up to August 23, 2024, defendant AHANG began to contrive of a scheme to have her ex-husband Hamid Mirshojae murdered for the purpose of financial gain . . ." (Id. at ¶ 16.) "Plaintiffs are informed and believe and thereon allege that in furtherance of the murder scheme, defendant AHANG assembled a gang of individuals . . . to ruthlessly kill her ex-husband . . ." (Id. at ¶ 17.) Plaintiffs also plead that Ahang "was extremely jealous of the fact that Hamid Mirshojae had become remarried to plaintiff, GHAZAL SIMORGH, and that the couple had a child, plaintiff AVINA MIRSHOJAE." (Complaint at ¶ 18.) "Plaintiffs are informed and believe and thereon allege that jealousy on the part of defendant, AHANG motivated her beyond simple financial incentives to seek to destroy plaintiffs' lives by killing their husband and father, Hamid Mirshojae." (Id. at ¶ 19.) "On August 23, 2024, at approximately 5:30 p.m., Hamid Mirshojae was leaving the building of his medical practice at Warner Plaza Medical Cetner and walking to his vehicle . . . [when co-defendant] in the most brutal and cowardly manner, repeatedly shot Hamid Mirshojae with a gun and fled, leaving Hamid Mirshojae . . . to die in the parking lot, which he did." (Id. at ¶ 20.) Based on the foregoing, Plaintiffs plead specific facts showing that Ahang acted intentionally, willfully, maliciously, and with a conscious disregard of Plaintiffs' rights. Ahang's motion to strike is denied as to this language and Plaintiffs' request for punitive damages.

In addition, Ahang moves to strike Plaintiffs' request for future losses on behalf of decedent. In a survival action, "the damages recoverable are limited to the loss or damage that the decedent sustained or incurred before death." (CCP § 377.34(a).) Accordingly, Ahang's motion to strike is granted as to future losses.

IV.

CONCLUSION

Ahang's demurrer to Plaintiffs' third cause of action for survival is SUSTAINED with

leave to amend.

Ahang's
demurrer to Plaintiffs' fourth cause of action for violation of the UVTA is
OVERRULED.

Ahang's
motion to strike punitive damages and related language is DENIED.

Ahang's
motion to strike request for future losses is GRANTED without leave to amend.

Plaintiffs
to file an amended complaint within 20 days of this order.

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Moving
party to give notice.

Dated July
____, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior
Court